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IN THE
Supreme Court of the United States

OCTOBER TERM, 1994

RONALD W. ROSENBERGER, *et al.*,

Petitioners,
v.

THE RECTOR AND VISITORS OF THE
UNIVERSITY OF VIRGINIA, *et al.*,
Respondents.

On Writ of Certiorari to the
United States Court of Appeals
for the Fourth Circuit

JOINT APPENDIX

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* * *

Counsel for petitioners and counsel for respondents have jointly agreed to lodge twelve sets of *Wide Awake Magazine* (each set containing three issues of the magazine) with the Court.

Counsel for petitioners have separately lodged 20 copies of *Al-Salam* magazine with the Court.

RELEVANT DOCKET ENTRIES

DATE	PROCEEDINGS
07/11/91	COMPLAINT.
08/30/91	ANSWER by defts. (notice mailed 9-9-91)
08/30/91	MOTION TO DISMISS by defts.
09/30/91	Plaintiffs MEMO of Points and Authorities in Opposition To defts. Motion To Dismiss.
11/12/91	PLAINTIFFS MOTION FOR SUMMARY JUDGMENT.
11/12/91	PLAINTIFFS STATEMENT OF MATERIAL FACTS AS TO WHICH THERE IS NO GENUINE ISSUE.
11/12/91	MEMO OF POINTS AND AUTHORITIES IN SUPPORT OF PLAINTIFFS MOTION FOR SUMMARY JUDGMENT.
11/12/91	AFFIDAVIT OF RONALD W. ROSENBERGER.
11/12/91	EXHIBITS TO MEMO OF POINTS AND AUTHORITIES IN SUPPORT OF PLAINTIFFS MOTION FOR SUMMARY JUDGMENT.
01/17/92	DOCUMENTARY APPENDIX TO DEFTS. SUMMARY JUDGMENT MEMO.
01/17/92	DEFTS. MEMO OF POINTS AND AUTHORITIES IN OPPOSITION TO PLAINTIFFS MOTION FOR SUMMARY JUDGMENT AND IN SUPPORT OF DEFTS. CROSS MOTION FOR SUMMARY JUDGMENT.
01/17/92	DEFTS. MOTION FOR SUMMARY JUDGMENT.
01/27/92	PLAINTIFFS REPLY TO DEFTS. CROSS MOTION FOR SJ AND TO DEFTS. OPPOSITION TO PLAINTIFFS MOTION FOR SUMMARY JUDGMENT.
05/20/92	MEMORANDUM OPINION.

DATE	PROCEEDINGS
05/20/92	ORDER ent. wherein it is ADJUDGED AND ORDERED that plaintiffs' motion for summary judgment is denied; defts.' cross motion for summary judgment is granted and this case is dismissed and stricken from the docket of the court. (Entry date: 05/21/92).

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF VIRGINIA
CHARLOTTESVILLE DIVISION

Civil No. _____

RONALD W. ROSENBERGER, as a member of WIDE AWAKE PRODUCTIONS, an unincorporated Contracted Independent Organization of the University of Virginia, and other student groups similarly situated, and as the Editor-in-Chief of WIDE AWAKE MAGAZINE, and GREGORY W. MOURAD, ROBERT J. PRINCE, and other students of the University of Virginia similarly situated,
Plaintiffs,
v.

THE RECTOR AND VISITORS OF THE UNIVERSITY OF VIRGINIA, EDWARD E. ELSON, W.L. LYONS BROWN, JR., ROBERT G. BUTCHER, JR., N. THOMAS CONNALLY, M.D., HOVEY S. DABNEY, WALLER H. HORSLEY, J. THOMAS HULVEY, M.D., EVANS B. JESSEE, PATRICIA M. KLUGE, ARNOLD H. LEON, LEIGH B. MIDDLEDITCH, JR., ELIZABETH D. MORIE, FREDDIE W. NICHOLAS, SR., S. BUFORD SCOTT, JESSE B. WILSON, III, THOMAS E. WORRELL, JR., ADAM S. ARTHUR, ALEXANDER G. GILLIAM, JR. in their capacities as members of THE RECTOR AND VISITORS OF THE UNIVERSITY OF VIRGINIA, RONALD J. STUMP in his capacity as Associate Dean of Students of the University of Virginia and Chairperson of the Student Activities Committee of the University of Virginia,
Defendants.

COMPLAINT FOR DECLARATORY AND
INJUNCTIVE RELIEF AND FOR DAMAGES

Plaintiffs allege and verify as follows:

NATURE AND SUMMARY OF THE ACTION

1. This is a civil action for declaratory and injunctive relief and for damages and attorneys' fees arising from defendants' violation of plaintiffs' constitutional and civil rights and liberties under the United States and Virginia constitutions and under federal and Virginia law.

2. Plaintiffs, RONALD W. ROSENBERGER, as a member of WIDE AWAKE PRODUCTIONS, an unincorporated Contracted Independent Organization ("CIO") of the University of Virginia, and as the Editor-in-Chief of WIDE AWAKE MAGAZINE, and ROBERT J. PRINCE and GREGORY W. MOURAD, and other past and present students of the University of Virginia similarly situated ("Plaintiffs"), seek:

A. a declaration that the conduct of the various named defendants in establishing and applying a policy for the University of Virginia, the Rector and Visitors of the University of Virginia, the Student Council of the University of Virginia, and the Appropriations Committee of the Student Council, which denies to plaintiffs the same benefits (including, but not limited to, eligibility to receive Student Activities Fund ("SAF") monies) granted other similarly situated students and student organizations, and which denies plaintiffs Student Activities Fund benefits solely and expressly because of the content or viewpoint of plaintiffs' speech, violates plaintiffs' rights to freedom of speech, freedom of association, freedom of the press, free exercise of religion, and to equal protection under the law, as guaranteed by the First and Fourteenth Amendments to the United States Constitution; by Article I, Sections 11, 12 and 16 of the Virginia Constitution; and by the Virginia Act for Religious Freedom, Code of Virginia Title 57, Chapter 1, Sections 57-1 and 57-2;

B. a declaration that the above-described conduct of the various named defendants denies plaintiffs their federal civil rights under color of state law in violation of Chapter 22, Section 1 of the Civil Rights Act of 1871, as amended, 42 U.S.C. § 1983 (1988);

C. a permanent order enjoining defendants from continuing and applying a policy of discriminating against plaintiffs in the appropriation of Student Activities Fund benefits or in any other manner on the basis of the content or viewpoint of plaintiffs' speech or on the basis of the content or viewpoint of the speech of the Contracted Independent Organization of which plaintiffs are members or of the journals, magazines, newsletters or other things that plaintiffs publish or may publish in the future;

D. such compensatory damages for violation of plaintiffs' federal and state constitutional and statutory rights as the Court may find just and proper, including but not limited to \$5,862.00, the sum of the SAF funds unlawfully denied plaintiffs, plus interest thereon from the date of such denial;

E. an order awarding plaintiffs reasonable costs and attorneys' fees pursuant to Section 2 of the Civil Rights Attorney's Fees Award Act of 1976, as amended, 42 U.S.C. § 1988 (1988); and

F. such other relief as the Court deems just and proper.

JURISDICTION

3. This action arises under the First and Fourteenth Amendments to the United States Constitution. Jurisdiction over the claims is conferred on this Court by 28 U.S.C. §§ 1331 and 1343 and by 42 U.S.C. §§ 1983 and 1988. Declaratory relief is authorized by 28 U.S.C. §§ 2201 and 2202. This Court has pendent jurisdiction over the state constitutional and statutory claims.

Constitution

Article I: *Name.* C. S. Lewis Society

Article II: *Purpose.* To promote interest in and discussion of, various literary, moral, and philosophical topics, with a particular emphasis on the work of the "Oxford Christians."

Article III. *Membership.* The C. S. Lewis Society does not discriminate on the basis of race, color, creed, national origin, affectional orientation, or sex. It is open to students, faculty members, and townspeople.

Article IV: *Officers.* John Stinneford, President. As this is a new organization, other positions and/or a managing committee will be set up at an organizational meeting in the fall.

Article V: *Elections.* Positions within the organization will be determined by a vote of the general membership.

Article VI: *Meetings.* The group will tentatively meet weekly on Sunday evenings.

Article VII: *Finances.* Members of the group may be expected to pay a nominal membership fee, and will be expected to help in any Fundraising activities. Authority for expenditure of the Funds shall reside in a majority vote of the organization officers.

Article VIII: *Amendments.* The Constitution may be amended by vote of the club membership.